

INFORMATION FOR CHARLES · TERMS OF SERVICE

Terms of Service

NamingContest.com · Last updated: October 1, 2026

This is information for Charles to create NamingContest's Terms of Service. It is written as a complete draft from how the product works on October 1, 2026, and it is live on namingcontest.com until the reviewed version replaces it. A few pain points worth a look are at the end.

These Terms of Service ("Terms") govern your use of NamingContest.com ("NamingContest" or the "Service"), operated by The Cypher Group, LLC ("Cypher", "we", "us" or "our"). By using the Service you agree to these Terms. If you do not agree, do not use the Service.

1. Definitions

- **Host** means a user who creates, pays for and runs a contest.
- **Participant** means a user who joins a contest through a Host's invite link to suggest names or vote.
- **Contest** means a naming contest run on the Service.
- **Brief** means the description of what is being named, written by the Service from the Host's answers.
- **User Content** means anything submitted to the Service, including brief answers, notes, suggested names, explanations, photos, settings and votes.

2. Eligibility and accounts

The same age rules apply in all our documents:

- **Everyone** must be at least 13 years old. Where you live in a country with a higher age for agreeing to the use of personal data online, you must be that age or have a parent's or guardian's permission.
- **Hosts**, who pay for contests, must be at least 18 years old, or the age of majority where they live if that is higher.
- **Participants under 18** may take part only with a parent's or guardian's permission.

The Service signs you in with a one-time link sent to your email address; there are no passwords. You are responsible for the security of your email account and for activity under your account. Please give accurate information and keep it up to date.

3. How the Service works

- **Setting up.** A Host answers a set of questions about what is being named and chooses the contest settings: how many names each Participant may suggest, how long suggestions and voting run, whether names are credited, and an optional prize.

- **The brief.** The Service uses an AI system to write the brief from the Host's answers. The Host reviews it before launch and may update it a limited number of times. The brief may contain mistakes, and the Host is responsible for checking it. Once a contest launches, its brief can no longer be changed.
- **Participating.** Participants join with their email address through the Host's link, suggest names during the suggestion stage and vote during the voting stage. Each Participant may pick up to 3 favourites and cannot vote for their own suggestion. Each contest has a maximum number of Participants set by the price paid.
- **Choosing the winner.** The Host chooses the winning name after voting closes. Votes are a guide; the Host's choice is final.
- **Names and anonymity.** Participants may choose to be credited for their suggestions or stay anonymous where the Host allows it. Hosts may choose to appear anonymously to Participants.

We provide the platform only. We do not write, endorse or check suggested names, and we do not choose winners.

4. Fees, payment and cancellation

Contests are sold for a one-time fee based on the maximum number of Participants: currently \$9 for up to 10, \$19 for up to 30 and \$39 for up to 90. There are no subscriptions or recurring charges. Prices are shown before you pay, and payment is processed by Stripe.

Except where the law requires otherwise, fees are non-refundable once a contest has launched, including if the Host cancels the contest. Cancelling a contest permanently discards its suggestions and votes.

If you are a consumer in the European Economic Area or the United Kingdom, you may have a legal right to withdraw from an online purchase within 14 days. By launching a contest you ask us to start immediately, and you acknowledge that you lose this right once the contest has launched. Where a refund right applies regardless, we will honour it as the law requires.

5. Prizes

Any prize is offered by the Host alone. Cypher is not a party to it, does not hold or deliver prizes and is not responsible if a prize is not provided. Hosts are responsible for describing their prize accurately, delivering it to the winner and complying with any laws that apply to prizes, contests or promotions where they and their Participants live.

6. Your content and our licence to use it

You keep ownership of your User Content, except for suggested names, which pass to the Host as described below. You give Cypher a worldwide, non-exclusive, royalty-free licence to host, store, copy, display, adapt and use it only to run and provide the Service. This includes showing a contest's brief and suggestions to its Host and Participants, and sending your brief answers to our AI provider so it can write the brief.

You confirm that you have the rights needed to submit your User Content, that it does not infringe anyone else's rights or break any law, and that you are entitled to share any information about other people it contains, such as family members or children.

Suggested names belong to the Host. When a contest closes, each Participant transfers to the Host, without payment, any rights they have in the names they suggested in that contest, together with any explanation given with them. The Host may then use, change, register or set aside any of those names, whether or not a name won, and Participants agree not to claim those names or object to the Host's use of them. If you want to keep a name for yourself, do not suggest it in a contest.

7. No promise that a name is available

Names suggested, generated or chosen through the Service are for ideas only. Neither Cypher nor NamingContest promises that any name is available, can be registered as a trademark or domain, is free of other people's rights or is lawful to use anywhere. You are solely responsible for your own trademark, legal and availability checks before using a name, and you use any name at your own risk.

8. Responsibility for content

Each person is responsible for the content they submit. Cypher is not responsible for User Content, including content that is offensive, infringing, inaccurate or unlawful. We do not review content in advance but may remove content or restrict accounts at our discretion.

9. Acceptable use

You agree not to:

- submit content that is unlawful, infringing, defamatory, harassing, hateful or obscene;
- share another person's sensitive information, such as health details, without the right to do so;
- pretend to be someone else or misrepresent your connection with anyone;
- manipulate suggestions or votes, including by joining a contest with more than one account;
- interfere with the Service, attempt to access it without permission, or overload it with automated requests;
- use the Service to send spam or collect other people's personal information;
- use the Service in breach of any law.

10. Third-party services

The Service relies on third-party providers, including Stripe for payments and an AI provider for brief writing. Your use of Stripe's payment form is also subject to Stripe's terms. We are not responsible for third-party services we do not control.

11. Intellectual property

The Service, including its software, design, text and branding, but not User Content, belongs to or is licensed to The Cypher Group, LLC and is protected by intellectual property laws. You receive no rights except those set out in these Terms.

12. Disclaimers

The Service is provided "as is" and "as available", without warranties of any kind, whether express, implied or statutory, including warranties of merchantability, fitness for a particular purpose, title and non-infringement. We do not promise that the Service will be uninterrupted, secure or error-free, or that AI-written briefs will be accurate. Some jurisdictions do not allow some of these exclusions, so they may not all apply to you.

13. Limitation of liability

To the fullest extent the law allows, The Cypher Group, LLC and its officers, members, employees and agents will not be liable for any indirect, incidental, special, consequential or punitive damages, or for loss of profits, revenue, data or goodwill, arising from your use of the Service. Our total liability for any claim relating to the Service will not exceed the amount you paid us in the 12 months before the event giving rise to the claim. Nothing in these Terms limits liability that cannot be limited by law.

14. Indemnity

You agree to indemnify and hold harmless The Cypher Group, LLC and its affiliates against claims, damages, liabilities and expenses, including reasonable legal fees, arising from your User Content, your prize (if you are a Host), your use of the Service, or your breach of these Terms, any law or anyone's rights.

15. Suspension and termination

We may suspend or end your access to the Service at any time if we reasonably believe you have broken these Terms, or to protect the Service or its users. You may stop using the Service at any time and ask us to delete your account. Terms that by their nature should continue after termination will continue.

16. Governing law and courts

These Terms are governed by the laws of the State of California, United States, without regard to its conflict-of-laws rules. Disputes relating to these Terms or the Service will be heard exclusively by the state and federal courts in Alameda County, California, except where consumer protection law gives you the right to bring proceedings in your local courts.

17. Changes to these Terms

We may change these Terms from time to time. The "Last updated" date shows when they last changed. We will tell you about significant changes through the Service or by email. If you keep using the Service after a change takes effect, the new Terms apply.

18. Contact

NamingContest.com, operated by The Cypher Group, LLC
3645 Grand Avenue, Suite 206, Oakland, CA 94610, USA
Email: hello@namingcontest.com

Worth a look

A few pain points we noticed while writing this, to keep in mind rather than a checklist. If anything is unclear, or you need more detail on any part of the product, just ask.

- **Prizes** (section 5). Worth checking whether prize contests need further wording, for example about sweepstakes or promotion laws in some US states.
- **Product gap**. The product does not check age. The rules in section 2 rely on people confirming it themselves. Is that enough?